

HOUSE No. 3989

The Commonwealth of Massachusetts

PRESENTED BY:

Kip A. Diggs

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to designating seasonal communities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kip A. Diggs</i>	<i>2nd Barnstable</i>	<i>1/16/2025</i>
<i>Tricia Farley-Bouvier</i>	<i>2nd Berkshire</i>	<i>10/7/2025</i>
<i>Thomas W. Moakley</i>	<i>Barnstable, Dukes and Nantucket</i>	<i>6/2/2025</i>

HOUSE No. 3989

By Representative Diggs of Barnstable, a petition (accompanied by bill, House, No. 3989) of Kip A. Diggs relative to seasonal community housing. Housing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to designating seasonal communities.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to address seasonal community housing in the commonwealth, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 32 of chapter 23B of the General Laws, as appearing in section 5 of
2 chapter 150 of the acts of 2024, is hereby amended by striking out subsection (b) and inserting in
3 place thereof the following subsection:-

4 (b) The secretary may designate a municipality as a seasonal community; provided,
5 however, that all municipalities located in the counties of Dukes, Nantucket, Barnstable and
6 Berkshire shall receive such designation. The executive office may designate additional
7 municipalities as seasonal communities based on consideration of the following factors: (i) a
8 high rate of short-term rentals in relation to the overall housing inventory; (ii) a significant
9 population increase in seasonal visitors; (iii) an excessive disparity between the area median
10 income and the income required to purchase the municipality's median home price; (iv) the
11 percentage of housing stock that is used for seasonal, occasional or recreational use or is

otherwise not used as a primary residence by the property's owner; and (v) high variations in the average monthly variation of employment in the sector over the full year, in relation to the municipality's minimum employment threshold. A municipality designated by the executive office as a seasonal community pursuant to this section shall accept or deny the designation by vote of its legislative body. The secretary shall consult with the advisory council established in subsection (c) to review additional municipalities under consideration to receive the seasonal community designation. All municipalities designated as seasonal communities shall be eligible for all benefits, funding and regulatory adjustments for seasonal communities under this section.

SECTION 2. Said section 32 of said chapter 23B, as so added, is hereby further amended by adding the following subsection:-

(i) The executive office shall prepare an annual report: (i) identifying the benefits provided to the municipalities in Dukes, Nantucket, Barnstable and Berkshire counties as a result of the seasonal communities designation pursuant to subsection (b); (ii) monitoring housing and economic conditions in Dukes, Nantucket, Barnstable and Berkshire counties; and (iii) providing any recommendations and possible legislation for improvements to the seasonal community designation in this section. The annual report shall be submitted, not later than December 31 of each year, to the chairs of the joint committee on housing and the clerks of the house of representatives and senate.